

**BEFORE THE STATE BOARDS OF REGISTERED PSYCHOTHERAPISTS AND
LICENSED PROFESSIONAL COUNSELOR EXAMINERS**

STATE OF COLORADO

CASE NOS. 2010-001368 & 2011-001160

STIPULATION AND FINAL AGENCY ORDER

**IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE
REGISTRATION TO PRACTICE PSYCHOTHERAPY AND THE LICENSE TO PRACTICE
PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF HEIDI BODE,
(RP) 9706, LPC (PENDING),**

Respondent.

**IT IS HEREBY STIPULATED by and between the State Board of Registered
Psychotherapists ("RP Board"), the Board of Licensed Professional Counselor Examiners
("LPC Board" – collectively together as "Boards") and Heidi Bode ("Respondent") as follows:**

- 1. The Boards have jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").**
 - 2. Respondent is listed in the database for registered psychotherapists ("RP") (formerly unlicensed psychotherapists) in the State of Colorado with number 9706 at all times relevant herein.**
 - 3. Respondent recently applied for a license to practice as a Licensed Professional Counselor ("LPC") in the State of Colorado.**
 - 4. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of Respondent's pending case with the RP Board and Respondent's pending LPC Application in the State of Colorado without the necessity of holding a formal hearing. This Order is a full and final resolution of case numbers 2010-001368 & 2011-001160. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Boards or Respondent, as of the effective date of this Order.**
 - 5. Respondent admits the following:**
 - a. On or about September 2008, Respondent failed to report child abuse as required by § 19-3-304, C.R.S.**
 - b. Respondent provided a misleading mandatory disclosure statement.**
 - 6. By virtue of the facts admitted in paragraph 5 above, the Boards find that Respondent violated §§ 12-43-222(1) (b), (g), and (p), C.R.S.**
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7. By virtue of the admissions contained in paragraph 5, Respondent specifically agrees to accept a LPC license subject to the terms and conditions outlined below. Respondent further agrees that the LPC Board is authorized by §§12-43-212 and 12-43-224(3) (c), C.R.S., to grant Respondent's LPC license with conditions. Respondent consents to the following limitations to her license within the meaning of §24-4-104(11), C.R.S. Respondent acknowledges that by accepting this conditional LPC license and discipline for the RP listing in lieu of a formal hearing, Respondent waives all remedies outlined in §§12-43-212 and 24-4-104(9), C.R.S.

PROBATION

8. Respondent's license to practice professional counseling and / or registration to practice psychotherapy in the State of Colorado are hereby placed on probation for 2 years commencing from the effective date of the Order, or the date Respondent's practice monitor is approved, whichever date is later. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order.

9. The period of probation is tolled during any time that Respondent is not practicing professional counseling and / or psychotherapy in this state, and such period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

10. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a licensed professional counselor and / or psychotherapist in Colorado, is being monitored by a practice monitor, and is in full compliance with all terms of this Order.

11. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Boards, and Respondent is responsible for establishing, to the satisfaction of the Boards, that she has satisfied all terms and conditions of probation.

PRACTICE MONITOR

12. During the term of probation, Respondent's practice shall be monitored by a practice monitor. Respondent shall submit, in writing, three proposed practice monitors for the LPC Board's approval within thirty days of the signing this agreement. Respondent shall include a program-approved practice monitor application from each potential monitor, with attached curriculum vita or resume. The practice monitor shall meet the following criteria:

- a. The practice monitor shall be either a licensed professional counselor, licensed clinical social worker, psychologist or CAC III and currently practicing in the State of Colorado.
- b. It is recommended that the practice monitor have a minimum of five years experience and has not been subject to professional discipline.
- c. The practice monitor shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

13. Respondent must have a practice monitor approved by the Boards within two months after this Order is fully executed. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of her practice until a practice monitor is approved.

14. After the LPC Board's written approval of the practice monitor, Respondent and the practice monitor shall enter into a written contract for monitoring. The practice monitor shall provide a copy of the written contract to the Boards as a part of his/her first report to the Boards. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, any investigative report, and any prior practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

15. The practice monitor shall conduct a practice evaluation during the first month of practice monitoring. The practice evaluation shall examine all aspects of Respondent's practice or proposed practice and her qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether she has the necessary qualifications, current ability, and competence to practice. The first practice monitoring report shall include the findings of the practice evaluation.

16. Should the Boards determine from the practice monitor's evaluation that Respondent cannot practice any part of her practice with skill and safety for clients in accordance with generally accepted standards of practice or does not have the appropriate qualifications, ability or competence for practice, Respondent shall immediately cease any part of the practice that the Boards determine, based on the evaluation, she is not qualified, competent, or safe to conduct. Based on the Boards' findings and the evaluation, the Boards will determine necessary actions that Respondent must take and conditions Respondent must meet so that Respondent can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Boards find Respondent is not qualified, competent, and safe to practice. Once Respondent satisfies the Boards that she is qualified, competent, and safe to fully practice, Respondent may resume full practice.

17. The practice monitoring shall consist of individual, in-person (face-to-face) sessions that occur once a month for at least one hour, or such longer time as the practice monitor deems necessary or for one hour, or such longer time as the practice monitor deems necessary, for every 20 hours of client contact, but at least once a month. During the practice monitoring sessions, Respondent and her practice monitor must review and discuss each of Respondent's active cases at least once every month in order to allow the practice monitor to be able to determine whether Respondent is practicing professional counseling/psychotherapy in accordance with generally accepted standards of practice and with skill and safety for her clients.

18. The practice monitor shall submit written reports to the Boards on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the first 12 reports. After the submission of the first 12 reports, unless otherwise ordered by the Boards, the practice monitor shall submit his/her reports by the fifth day of every third month (i.e., on a quarterly basis) until the practice monitoring is completed.

19. If at any time the Boards have questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meetings necessary to address either or both of the Board's concerns. The Boards will give the practice monitor 30 days notice prior to requiring the practice monitor's attendance at any Board meeting.

20. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to her clients, or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Boards, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling and / or psychotherapy.

21. Respondent shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Boards. If, in the Boards and judgment, the practice monitor fails to perform the function specified by this Order, the Boards may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Boards within 30 days.

22. Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Boards not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved practice monitor, who shall conduct her/his monitoring and report to the Boards in accordance with this Order.

CONTINUING EDUCATION

23. During the period of probation, Respondent must successfully complete (30) thirty hours each year, (60) sixty hours total, of continuing education in the areas of reporting child abuse, boundaries, ethics, child sex abuse, effects of sex abuse / domestic violence and legal / ethical issues. Respondent shall obtain LPC Board approval of every course prior to enrolling in each course. Upon completion of a course, the Respondent must ensure that the provider has mailed a certificate of completion to the Boards.

TERMS AND CONDITIONS

24. Respondent will strictly observe all the applicable provisions set forth under the Colorado Mental Health Practice Act, including by not limited to the specific provisions under § 12-43-222, and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

25. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing psychotherapy, unless such supervision or consultation is monitored in accordance with this Order.

26. All expenses incurred or associated with the practice evaluation, practice monitoring, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Boards.

27. During the pendency of this Order, Respondent agrees that she will provide permission to and allow her practice monitor to provide records and information obtained in the normal course of practice monitoring to the Boards if the practice monitor determines that

Respondent is not practicing professional counseling and / or/psychotherapy in accordance with generally accepted standards of practice or has a condition that renders her unable to treat clients with skill and safety or that may endanger the health or safety of persons under her care. As part of this Order, Respondent explicitly waives her right to maintain confidentiality of records or information provided to the practice monitor in the normal course of practice monitoring if the practice monitor determines that she is not practicing professional counseling and / or psychotherapy in accordance with generally accepted standards of practice or has a condition that renders her unable to treat clients with skill and safety or that may endanger the health or safety of persons under her care.

28. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Boards of the change of address within 30 days of the effective date of such change.

29. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

30. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

31. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

32. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

33. This Order constitutes the entire agreement between Respondent and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

34. Applicant shall obey all municipal, state and federal laws while this Order is in effect.

35. This Order shall become effective when accepted and signed on behalf of the Boards.

36. This Order shall be admissible as evidence at any hearing held before the Boards.

37. This Order shall be a public record in the custody of the Boards.

AGREED TO AND ACCEPTED BY:

RESPONDENT

Heidi Bode

Heidi Bode
(RP) 9706, LPC (Pending)

Date: 9/27/11

FOR THE BOARD OF REGISTERED
PSYCHOTHERAPISTS AND THE BOARD
OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS:

Ronne M. Hines

RONNE M. HINES
Program Director

Effective Date: This 28th day of
September, 2011.